

**IN THE DISTRICT COURT OF APPEAL
FIRST DISTRICT, STATE OF FLORIDA**

CASE NO.: 1D2025-1127

Lower Tribunal Case No.: 2018-CA-000543

MARC M. MOSZKOWSKI,

Petitioner,

v.

DEEPGULF, INC. and TOKE OIL AND GAS, S.A.,

Respondents.

MOTION FOR REHEARING AND/OR CLARIFICATION

COMES NOW the Petitioner, MARC MOSZKOWSKI, and respectfully moves this Honorable Court for rehearing and/or clarification of the Order dated May 16, 2025, which dismissed Petitioner's Petition for Writ of Prohibition and denied all pending motions as moot. In support, Petitioner states as follows:

1. Request for Clarification

Petitioner respectfully requests clarification of the basis for the Court's dismissal of the Petition for Writ of Prohibition. The dismissal was issued

without opinion, and no response was filed by Respondents. Petitioner respectfully requests clarification as to whether the dismissal was:

- Jurisdictional,
- Based on the insufficiency of the Petition,
- Or on another procedural or substantive ground.

Clarification would assist Petitioner in understanding whether future relief is appropriate or foreclosed.

2. Grounds for Rehearing

Petitioner respectfully asserts that the Petition raised substantial legal grounds for the writ, including:

- A pattern of procedural disregard by the trial court;
- Documented inconsistencies between the court's assertions of jurisdiction and the uncontested facts of record, including rulings on matters neither disputed nor properly before the court;
- Imminent irreparable harm arising from enforcement of lower court orders while judicial disqualification was under appellate review.

The denial of the Emergency Motion to Stay as "moot" occurred within hours of its filing, and Petitioner submits that this motion independently

warranted a brief stay of execution to preserve appellate jurisdiction and avoid coercive consequences under the disputed authority of the trial court.

3. Urgency and Impact

Petitioner respectfully notes that he faces a contempt hearing on June 10, 2025, for inability to attend a mediation ordered by the same judge whose impartiality was contested. The Court's ruling, unless reconsidered, permits enforcement of that contempt process without appellate oversight.

Conclusion

Petitioner respectfully requests that this Honorable Court:

- Reconsider its dismissal of the Petition for Writ of Prohibition; and/or
- Clarify the grounds for the dismissal so Petitioner may act accordingly.

Respectfully submitted this 16th day of May, 2025

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CERTIFICATE OF SERVICE

I hereby certify that, on this 16th day of May, 2025, a copy of this Motion has been furnished to Braden K. Ball, Jr., attorney for the Respondents, through the Florida Courts E-Filing Portal.

M. Maszkowski